INMARSAT USE BY ARMED FORCES: A QUESTION OF TREATY INTERPRETATION

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Introduction

Inmarsat[1] is at present the largest provider of space segment capacity for global mobile satellite communications for maritime, aeronautical and land-mobile civil applications. Article 3(3) of the Inmarsat Convention[2] provides that "the Organization shall act exclusively for peaceful purposes." Based on US Department of Defense and other publications, Morgan[3] has recently reported about the extensive use of, *inter alia,* Inmarsat during the Persian Gulf War - including Inmarsat services to the Iraqis, the Falklands conflict, UN operations in Somalia, Bosnia and Croatia.[4] While such uses have in most cases gone unnoticed by the Inmarsat Directorate[5] which is only in charge of commissioning the

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1 The International Maritime Satellite Organization (INMARSAT), 3 September 1976, 31 U.S.T. 1, 1143 U.N.T.S. 105 (Convention) and 213 (Operating Agreement) [entered into force 16 July 1979]; *See* S. E. Doyle, *INMARSAT: The International Maritime Satellite Organization - Origins and Structure*, 5 J. SPACE L. 45 (1977); H.H.M. Sondaal, *The Current Situation in the Field of Maritime Satellite Communication Satellites: INMARSAT*, 8 J. SPACE L. 9 (1980); W. D. von Noorden, *Space Communications to Aircraft: A New Development in International Space Law*, 15 J. SPACE L. 25-34, 147-160 (1987); W. D. von Noorden and P. Dann, *Land Mobile Satellite Communications: A Further Development in International Space Law*, 17 J. SPACE L. 1-11, 103-113 (1989). As of 1 July 1994, Inmarsat had 75 Member States, each of which designated one telecommunications entity under its jurisdiction as Signatory to the Operating Agreement.

2 Hereafter "Convention."

3 R. A. Morgan, *Military Use of Commercial Communications Satellites: A New Look at the Outer Space Treaty & "Peaceful Purposes"*, Georgetown University Law Center, December 1993 (cleared for publication by the US Dep't of Def. on 12 Jan. 1994).

4 *Id. at* 28 *et seq.*

5 The organs of the Organization are: the Assembly of Inmarsat Member States; the Council, composed of 18 Signatories, with the largest utilization of the Inmarsat system which is determined annually, and 4 regional representatives appointed by the Assembly biannually; and the Directorate as executive organ,

mobile earth stations (MES) for access to the Inmarsat system but does not, of course, monitor the contents of communications, Inmarsat use in the Iraq-Kuwait conflict was widely publicized[6] and, referring to Convention, Article 3(3), concern was expressed by Inmarsat in a letter to the US Department of State.[7] The Department of State responded by assuring Inmarsat "that appropriate steps have been taken to avoid recurrence of such publicity,"[8] avoiding the legal issue in a classical diplomatic response. The following analysis attempts to properly construe the peaceful purposes requirement in the light of an increasingly active UN Security Council, and to develop the framework within which armed forces may legitimately use the Inmarsat system while taking a critical look at Inmarsat's past policy and practice regarding military uses.

Inmarsat Past Policy and Practice

As a young international organization established during the cold war period and with a wide range of NATO, Warsaw Pact and Third World States among its members, Inmarsat's position relative to military use of its space segment has understandably been overly careful and conservative. Looking at the ordinary meaning of the words "exclusively for peaceful purposes," it took the view that "peaceful purposes" are those which do not relate to armed conflict, acknowledging that "military uses" *per se* are not incompatible with peaceful purposes, but excluding uses in armed conflict or for self-defense pursuant to the UN Charter, Article 51, even though such uses may be deemed "non-aggressive." However, communications made for recognized humanitarian purposes have been regarded as made for peaceful purposes even if they occur in the course of armed conflict. The word "exclusively" adds emphasis only and does not change the essential meaning of the word "peaceful" which it qualifies. In summary, Inmarsat's view has been that (i) it is consistent with Convention, Article 3(3), to commission ship earth stations (SES) on warships and naval auxiliary vessels; (ii) if such vessel becomes involved in armed conflict the SES may only be used for distress and safety communications and other purposes recognized by international humanitarian law.[9] Inmarsat simultaneously suggested a procedure for commissioning SES's on board warships and naval auxiliary vessels making above conclusions a condition for Inmarsat use and a governmental undertaking by a competent authority of the flag State

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headed by a Director General who is responsible to and under the control of the Council. *See* Convention, *supra* note 1, arts. 9, 12, 13, 15 and 16.

6 *See* 2 SPACENET 2 (21 Jan. 1991).

7 Letter from Inmarsat to US Dep't of State (28 Jan. 1991) (on file with Inmarsat).

8 *Sic!* Letter from US Dep't of State to Inmarsat (11 Feb. 1991), *ibid.*

9 These guidelines for Convention, Article 3(3), were laid down in a communication to all Inmarsat Signatories (29 March 1988) (filed with Inmarsat).

of the vessel to this effect a condition for commissioning.[10] With the development by Inmarsat of aeronautical and land-mobile satellite services and its enhanced institutional competence, the policy was in practice extended accordingly for use by air and land forces.

Upon reconsideration and irrespective of the increasing demand for Inmarsat system use by UN and other naval, air and land forces, the past policy needs to be re-visited mainly for the following reasons: (i) in its *per se* proper focus on the ordinary meaning of the words "exclusively for peaceful purposes" emphasis is put solely on "peaceful" rather than on "purposes"; (ii) insufficient recourse has been had to the UN Charter and the Outer Space Treaty[11] to further determine the legal meaning of the words; consequently, the past policy is overly restrictive and does not allow for use of Inmarsat by UN peace forces acting under UN Security Council decisions if engaged in armed conflict for the maintenance or restitution of peace; (iii) the focus on armed conflict excludes use by other than UN forces acting individually or collectively in legitimate self-defense against unlawful aggression;[12] (iv) the recognition in the past policy of humanitarian purposes is progressive and consistent with international law but requires further legal substantiation.

Convention Article 3(3) Re-visited

The basic rules of interpretation applicable to Convention, Article 3(3), are Article 31 and Article 32 of the Vienna Convention on the Law of Treaties, 1969:[13] any interpretation has to be made in good faith and has to focus first of all on the "ordinary meaning to be given to the terms of the treaty in their context and in the light of its object and purpose."[14] The context comprises, *inter alia,* the preamble[15] and subsequent State practice is to be taken into account.[16] The *traveaux préparatoires* are relevant for confirmation unless there is a case of ambiguity or no

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10 *Id.*

11 Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, Including the Moon and Other Celestial Bodies, 27 January 1967, 18 U.S.T. 2410, 610 U.N.T.S. 20 (entered into force 10 October 1967) [hereinafter Outer Space Treaty].

12 These points have also been raised by R. A. Morgan, *supra* note 3, at 89.

13 The Vienna Convention on the Law of Treaties, 23 May 1969, 8 I.L.M. 679 (entered into force on 27 January 1980) [hereinafter Vienna Treaty Convention] applies explicitly to the constituent instrument of an international organization, albeit "without prejudice to any relevant rules of the organization." *See* art. 5.

14 *Id.* at art. 31, para. 1; *see also* 1 OPPENHEIM'S INTERNATIONAL LAW, §632 (R. Jennings & A. Watts eds., 9th ed. 1992) [hereinafter "Oppenheim's"].

15 Vienna Treaty Convention, *supra* note 13, at art. 31, para. 2.

16 *Id.* at art. 31, para. 3.

reasonable conclusion can be drawn from the ordinary meaning in context.[17]

Technically, the application of the Vienna Treaty Convention, 1969, may be questionable because it entered into force after the Inmarsat Convention[18] and Article 4 of the Vienna Treaty Convention states on the non-retroactivity that "the Convention applies only to such treaties concluded after" its entry into force. However, the Vienna Treaty Convention has been extensively applied in relation to treaties between States both by States and by the International Court of Justice and other tribunals before its entry into force, and it is widely regarded for the most part as declaratory of customary international law.[19]

(i) Inmarsat Use by UN Peacekeeping and Peacemaking Forces

Focusing thus on the ordinary meaning of Convention, Article 3(3), it is remarkable that the wording "exclusively for peaceful purposes" is ambiguous.

The ambiguity does not arise from the adjective "exclusively" which clarifies that the "peaceful purposes" requirement is unconditional, a qualification that first occurred in similar form in the Antarctic Treaty, 1959,[20] before it found its way into the Outer Space Treaty, Article IV,[21] from which the Convention, Article 3(3), language was apparently taken.

It may be argued with respect to the explicit prohibition of military activities in Antarctic Treaty, Article 1, paragraph 1, and Outer Space Treaty, Article IV, subsequent to the words "only" and "exclusively" respectively, that "exclusively" in Convention, Article 3(3), means "non-military." While this interpretation may well apply to these and other treaties that contain such "non-military" qualification in their respective texts, there is no conclusive justification for or even evidence of the formation of a *communis opinio* to the effect that the qualification "exclusively" in Convention, Article 3(3), would rule out military applications. Not only were military uses of outer space State practice of the USA and USSR already at the time of the conclusion of the Outer Space

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17 *Id.* at art. 32; *see* Oppenheim's, *supra* note 14, at §633.

18 *Compare* Inmarsat Convention, *supra* note 1 *with* Vienna Treaty Convention, *supra* note 13 (the Inmarsat Convention entered into force on 16 July 1979).

19 *See* Oppenheim's, *supra* note 14, §581.

20 Antarctic Treaty, 1 December 1959, 12 U.S.T. 794, T.I.A.S. 4780, 402 UNTS 71 (entered into force on 23 June 1963), art. 1, para. 1 states: "Antarctica shall be used for peaceful purposes only. There shall be prohibited, *inter alia*, any measures of a military nature...".

21 Outer Space Treaty, *supra* note 11, art. IV states: "...The moon and other celestial bodies shall be used by all States Parties to the Treaty exclusively for peaceful purposes. The establishment of military bases ... the conduct of military maneuvers shall be forbidden ...".

Treaty, 1967, followed by other States;[22] the Inmarsat preceding INTELSAT Agreement,[23] Article III(d), explicitly prohibits military uses of INTELSAT space segment for "specialized telecommunications services," by using the wording "other than for military purposes."[24] Such language was before the drafters of the Inmarsat Convention which has been modeled after the INTELSAT Agreement.[25] Thus, military use of Inmarsat is not *prima facie* inconsistent with the Convention, Article 3(3).

The ambiguity arises from the qualifying adjective "peaceful" as attribution to the neutral noun "purposes:" a purely - but legally required - grammatical interpretation could construe this to mean either "Inmarsat shall act peacefully only" or "Inmarsat shall act only for purposes of peace." The former meaning would principally prohibit Inmarsat use in armed conflict or any form of threat or use of force irrespective of purpose; the latter meaning would principally permit such use to the extent that its purpose is peace. It is obvious that Inmarsat's past policy elected the former interpretation, thus emphasizing means over purpose, while the alternative interpretation has not been properly considered. It is precisely at this juncture that Vienna Treaty Convention, Article 31, requires to look at the context of Convention, Article 3(3), and the object and purpose of the Convention so as to acquire further guidance.

Regarding the context of Convention, Article 3(3), such guidance may be had, in particular, from Convention, Article 12(1)(b), which obliges the Inmarsat Assembly of Parties to ensure that the Organization's activities are consistent with, *inter alia,* the purposes and principles of the UN Charter; further from Convention, Preamble, 1st recital, referring to UN General Assembly Resolution 1721(XVI) which, *inter alia,* commends to States the principle that international law, including the UN Charter, apply to outer space and its use; and Convention, Preamble, 2nd recital, referring to the Outer Space Treaty "and in particular Article 1, which states that outer space shall be used for the benefit and in the interests of all countries". Finally, Convention, Article 27, obliges the Organization, *inter alia,* to cooperate with the UN and its bodies dealing with the peaceful uses of outer space and ocean area. These references need to be considered more closely.

UN General Assembly Resolution 1721(XVI) of 20 December 1961 contains the recognition of the "common interest of mankind in furthering

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22 *E.g.*, reconnaissance satellites for military intelligence which are deemed to be not forbidden by Outer Space Treaty, article IV. *See* Oppenheim's, *supra* note 14, §363.

23 Agreement Relating to the International Telecommunications Satellite Organization "INTELSAT," 20 August 1971, 22 U.S.T. 3813, T.I.A.S. 7532 (entered into force on 12 February 1973).

24 The same language is used in INTELSAT Agreement, art. III(e)(iii), for "separate space segment facilities." *Id.*

25 The Final Act of the International Conference on the Establishment of an International Maritime Satellite System, 1975-1976, creating Inmarsat, was done at London on 3 September 1976.

the peaceful uses of outer space and the urgent need to strengthen international co-operation in this important field." "Believing that the exploration and use of outer space should be only for the betterment of mankind and to the benefit of States...," it refers for the use of outer space to international law and the UN Charter.

The "common interest of all mankind" element and "use of outer space for peaceful purposes" and "for the benefit of all peoples" are also contained in the Preamble to the Outer Space Treaty. The Preamble further discourages any "threat to peace, breach of the peace or act of aggression" and, most relevant here, expresses the conviction that the Outer Space Treaty "will further the Purposes and Principles of the Charter of the United Nations." These preambular principles are then reflected in more detail in various provisions of the treaty, *i.e.*, use of outer space for the "benefit and in the interests of all countries" and "in accordance with international law" in Article I; to carry out activities "in accordance with international law, including the Charter of the United Nations, in the interest of maintaining international peace and security" in Article III; prohibition of activities for military purposes on the moon and other celestial bodies in Article IV (*sic!* and not in other areas of outer space);[26] principle of State co-operation to these ends in Article IX.

The UN Charter has as its primary purpose "To maintain international peace and security, and to that end: to take effective collective measures for the prevention and removal of threats to the peace, and for the suppression of acts of aggression or other breaches of the peace...," UN Charter, Article 1, paragraph 1. In pursuit of this and its other purposes, the Charter establishes in Article 2 certain Principles, in particular, the principle in paragraph 3 that "All Members shall settle their international disputes by peaceful means in such a manner that international peace and security, and justice, are not endangered;" and in paragraph 4 that "All Members shall refrain in their international relations from the threat or use of force against the territorial integrity or political independence of any state, or in any manner inconsistent with the Purposes of the United Nations" (all Chapter I). Chapter VII deals with action by the UN with respect to threats to the peace, breaches of the peace and acts of aggression, providing in Article 39 for the UN Security Council to "determine the existence of any threat to the peace, breach of the peace, or act of aggression" and to "make recommendations, or decide what measures shall be taken in accordance with Articles 41 and 42, to maintain or restore international peace and security." Article 41 contains the measures not involving the use of armed force. Article 42, following the

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26 *See also* Agreement Governing the Activities of States on the Moon and Other Celestial Bodies, adopted by the UN General Assembly Resolution 34168 on 5 December 1979, Article 3(4). For a broader discussion of military uses of outer space and the Outer Space Treaty, article IV, *see* N. Jasentuliyana, *The Moon Treaty, in* MAINTAINING OUTER SPACE FOR PEACEFUL USES, at 125-132 (N. Jasentuliyana ed. March 1984); S. Gorove, *Article IV Of The 1967 Outer Space Treaty And Some Alternatives For Further Arms Control, id.*, at 80-83.

principle of proportionality, provides as follows: "Should the Security Council consider that measures provided for in Article 41 would be inadequate or have proved to be inadequate, it may take such action by air, sea, or land forces as may be necessary to maintain or restore international peace and security. Such action may include demonstrations, blockade, and other operations by air, sea, or land forces of Members of the United Nations."

After having reviewed the relevant context to Convention, Article 3(3), the following can be summarized: the Convention is governed by international law, in particular the Outer Space Treaty and the UN Charter; outer space shall be used for the benefit and interests of all countries; except for the explicitly de-militarized moon and other celestial bodies, military use of outer space *per se* is not prohibited; any use establishing a threat to peace, breach of peace or act of aggression is prohibited; activities in outer space must be carried out in accordance with the UN Charter in the common interest of maintaining international peace and security; in order to maintain international peace and security, the UN shall take collective measures for the prevention and removal of threats to peace, and for the suppression of acts of aggression or other breaches of the peace; to this end, the UN Security Council determines the existence of any threat to the peace, breach of the peace, or act of aggression and decides upon the measures to be taken by air, sea or land forces to maintain or restore international peace and security.

The following can thus be inferred from the relevant legal context of Convention, Article 3(3), to the alternative results of the grammatical interpretation referred to above: it does not appear inconsistent with the meaning of "exclusively for peaceful purposes" if the Inmarsat system is used consistent with the UN Charter and Outer Space Treaty for purposes of maintaining or restoring international peace and security for the benefit and in the interests of all countries.[27]

The next question to be examined is the compatibility of the above result with the overall object and purposes of the Inmarsat Convention:[28] it is evident from the text, history and practice of the Convention that Inmarsat has been set up as a civil space communications organization. Its provision of space segment is primarily for merchant shipping and, as a permissive competence, for aircraft and land-mobiles.[29] Consequently,

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27 For a similar conclusion, see also, R. A. Morgan, *supra* note 3, at 62-74, 88-94.

28 *See supra* text at 3 *et seq.*.

29 *See* Convention, *supra* note 1, art. 3(1); Convention, Preamble, 3rd recital, referring to world trade; the history of the Organization as a creation of IMCO (now the International Maritime Organization (IMO), 9 U.S.T. 621, T.I.A.S. 4044, 289 U.N.T.S. 48, amendment T.I.A.S. 10374; the composition of Inmarsat's Signatories as civil telecommunications entities; the practice of Inmarsat since its inception to serve primarily merchant shipping, and later civil aviation and commercial land transport, to list some indicators; ditto R. A. Morgan, *op. cit.*, *supra* note 3, at 47 (with reference to the IMCO Panel of Experts).

Inmarsat's main purpose is the provision of space segment for civil sea, air and land transport. Military applications have been the exception rather than the rule and have been dealt with by Inmarsat on a case by case basis, requiring an explicit governmental undertaking in each case.[30] In summary, Inmarsat has not been set up as a military organization and does not have military applications as its main purpose. However, its treaty linkages to international law, the Outer Space Treaty and the UN Charter make its military UN applications clearly not inconsistent with its wider civil object and purposes.

Thus, the following first conclusion may be drawn: Use of Inmarsat by armed forces (military use) not involved in armed conflict or any threat to or breach of the peace is consistent with Convention, Article 3(3). Use of Inmarsat by UN peacekeeping or peacemaking forces acting under the auspices of the UN in implementation of UN Security Council decisions in order to maintain or restore international peace and security may be construed as consistent with Convention, Article 3(3), irrespective of such UN forces becoming involved in armed conflict in the accomplishment of their UN mission. Involvement in armed conflict is a possibility implicit in the maintenance or restoration of international peace and security by UN forces.

(ii) Inmarsat Use by Other Armed Forces

The question remains whether and to what extent Inmarsat use in armed conflict by forces other than UN forces acting in implementation of UN Security Council decisions would be compatible with the Convention, Article 3(3), requirement. The response would have to be based on and be consistent with the considerations and conclusions set forth above, in particular, the requirement for Inmarsat to act for peaceful purposes in compliance with international law, the Outer Space Treaty and the UN Charter.

Considering the UN Charter as the key point of reference for the Convention and the Outer Space Treaty, the point of departure must be the general prohibition of any threat or use of force (UN Charter, Article 2, paragraph 4) on which the UN system of collective security is based. The legitimate use of force under the UN Charter is concentrated in the UN Security Council and measures decided by it pursuant to UN Charter, Articles 39, 41 and 42. There are, however, two major exceptions under the UN Charter where force may be used other than by the UN Security Council or where the use of force may be acquiesced to by the UN Security Council, *i.e.*, (i) the case of individual or collective self-defense under UN Charter, Article 51; (ii) the case of non-international armed conflict (what is in general parlance referred to as "civil war") and which may qualify as a

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30 *See supra* text at 2 *et seq.* Such requirement is fully justified, *inter alia*, on the basis of Convention, article 12(1)(b), and Outer Space Treaty, article VI, establishing responsibility by both, parties to the Outer Space Treaty and the international organization, for activities carried out in outer space.

matter "essentially within the domestic jurisdiction of any state" pursuant to UN Charter, Article 2, paragraph 7, and into which the UN may elect not to intervene. The question to be considered here is whether and to what extent use of Inmarsat by armed forces under these circumstances may be construed as legitimate under the Convention, Article 3(3), requirement.

By reserving the right of individual and collective self-defense UN Charter, Article 51, provides a major exception to the prohibition of use of force outside the UN collective security system: "Nothing in the present Charter shall impair the inherent right of individual or collective self-defense if an armed attack occurs against a Member of the United Nations, until the Security Council has taken measures necessary to maintain international peace and security ...." The exceptional character of Article 51 is underlined by strict limitations: self-defense is permissible only in the case of an "armed attack" and as a preliminary measure "until the UN Security Council has taken measures" pursuant to Article 39.[31]

The use of force in self-defense pending action by the UN Security Council is *prima facie* not consistent with "exclusive peaceful purposes" in the meaning established for Convention, Article 3(3), above because it occurs *ex definitione* outside the UN collective security system which prohibits any use of force other than authorized by the UN Security Council for the maintenance or restoration of international peace and security. On the other hand, in respecting the competence and responsibility of the UN Security Council for the restoration of international peace and security and being restricted to remedial measures pending action by the UN Security Council, the exercise of self-defense within the limitations of UN Charter, Article 51, must be considered as directly serving the restoration of international peace and security just as any subsequent action taken by the UN Security Council.

Further, "the inherent right" of self-defence, individually or collectively, established by UN Charter, Article 51, has been recognized as a legitimate remedy of last resort which is part of customary international law and not having been created by the UN Charter. In fact, the customary right of self-defense and self-defense under UN Charter, Article 51, have been identical from the outset.[32] Therefore, as the general prohibition of the use of force in UN Charter, Article 2, paragraph 4, is without prejudice to the customary right of self-defense within the limitations of Article 51, and in the absence of any indication to the contrary other than the existence of Convention, Article 3(3), it may be inferred from the strong and explicit linkages of the Convention to the UN Charter and international law that Convention, Article 3(3), does not intend to prohibit Inmarsat uses

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31 *See* B.-O. Bryde, *Self-Defence, in* 4 ENCYCLOPEDIA OF PUBLIC INTERNATIONAL LAW, at 212-213 (Bernhardt ed.) [hereinafter ENCYCLOPEDIA]; J. Delbruck, *Collective Self-Defence in* 3 ENCYCLOPEDIA, at 115-116.

32 *See* B.-O. Bryde, *supra* note 31, at 214 (with reference to Brownly).

within the narrow limitations of legitimate self-defenseas established in customary international law and reflected in UN Charter, Article 51.[33]

Some clarification may be appropriate regarding the meaning of "armed attack" as one of the main requirements for legitimate self-defence. Following UN General Assembly Resolution 3314(XXIX) of 14 December 1974 (by *consensus*) and its long history,[34] the terms "armed attack" and "aggression" may be assumed to be identical.[35] UN General Assembly defines the identical "aggression" in Article 1 of the Resolution as "the use of armed force by a State against the sovereignty, territorial integrity or political independence of another State, or in any other manner inconsistent with" the UN Charter. The following examples are, *inter alia,* given in Article 3 of the Resolution: the invasion or attack by the armed forces of a State of the territory of another State, any military occupation, any annexation, bombardment, the blockade of the ports or coasts of a State by the armed forces of another State, an attack by the armed forces of a State on the land, sea or air forces, the use of armed forces within the territory of another State in contravention of the conditions agreed by the receiving State. Article 4 of the Resolution determines that the enumerated acts are not exhaustive and that the UN Security Council may determine that other acts constitute aggression. Article 5 of the Resolution states that no consideration whatsoever may serve as justification for aggression, that a war of aggression is a crime against international peace and gives rise to international responsibility.[36]

While UN General Assembly Resolution 3314(XXIX) may not cover all cases of armed attack, it certainly establishes for UN Charter, Article 51, that the right of self-defense may not legitimately be invoked against violation of rights other than by use of armed force; in particular, it rules out self-help involving the use of force[37] and preventive use of armed force

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33 Marginally, it may be observed that in actual practice Inmarsat has hardly any means to cut off access to its system by mobiles of an attacked state taking recourse to legitimate armed self-defense other than by decommissioning all its governmental MES, maritime, aeronautical and land-mobile, irrespective of their intended or actual use because such use will not be known to Inmarsat at the time of its occurrence; further, UN Charter, art. 51, requires immediate reporting to the UN Security Council of measures taken in self-defense so as to enable the Council to pronounce without delay a case of legitimate self-defense and initiate collective measures under UN Charter, articles 39 *et seq.*

34 The initiatives of the UN General Assembly to formulate "aggression" began in 1952. *See* B. B. Ferencz, *Aggression, in* 3 ENCYCLOPEDIA, *supra* note 31, at 2-3.

35 In the official French text of UN Charter, art. 51, the language "agression armée" is used for the English "armed attack"; *See also* B.-O. Bryde, *supra* note 31, at 213.

36 *See* B.B. Ferencz, *supra* note 34, at 3.

37 *See* B.-O. Bryde, *supra* note 31, at 214; see also *Self-Help*, 4 ENCYCLOPEDIA, *supra* note 31, at 216: "an unavoidable conclusion."

in the absence of armed attack.[38] Such use of force would not be covered by customary international law and UN Charter, Article 51, and would be in breach of the prohibition of the use of force in UN Charter, Article 2, paragraph 4. Consistent with the legal considerations set forth in paragraphs 21 and 22 above, Inmarsat uses would be prohibited in such cases.

The illegitimacy of armed force for self-help and preventive action are, of course, contentious[39] and the view here taken is based on the exceptionality of UN Charter, Article 51, and the prohibition, in principle, of the use of force outside the UN system of collective security. There may be exceptional cases where the UN Charter, Chapter VII, mechanism fails and where, taking into account the always prevailing principle of proportionality in the laws of war, self-help and preventive action remain as the very last resort available to preserve or restore the *status quo ante*.[40] However, there does not appear to exist a *communis opinio* to establish a right to such interventions as customary international law in the *post*-UN Charter period. The relevant debates that took place in the UN Security Council subsequent to such interventions point rather to the direction that they remain incompatible with international law. So what remains is a "tacit political approval"[41] short of a rule of law and, therefore, not a suitable basis to establish an exception to the Convention, Article 3(3), requirement.

The second problem complex to be resolved is the use of Inmarsat by government or rebel forces or both engaged in civil war. Since 1945 civil wars have been more numerous than international armed conflicts and the latter have frequently developed as an escalation of the former.[42] UN Charter, Article 2, paragraph 4, refers to use of force by States "in international relations", thus not prohibiting civil war *per se*, and the UN may elect not to intervene because the civil war is considered by the UN

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38 *Id.* at 213.

39 *See* W. Meng, *The Caroline*, 3 ENCYCLOPEDIA, *supra* note 31, at 81 (with reference to the Caroline case (1842)): preventive self-defense in the form of self-preservation limited by narrowly defined necessity; the danger is "instant, overwhelming, leaving no choice of means and no moment for deliberation" and the act is limited to and "kept clearly within" the necessity of self-defense (cited from the 1837-42 USA/GB governmental correspondence regarding the destruction of the Caroline).

40 *See* J. Delbruck, *id.* at 116. For cases of armed intervention to protect nationals abroad (so called "humanitarian intervention"), *see* U. Beyerlin, *Humanitarian Intervention*, 4 ENCYCLOPEDIA, *supra* note 31, at 213-214.

41 *See* U. Beyerlin, *supra* note 40.

42 "In the modern world, States seldom try to enlarge their territory by sending their armies to overrun the territory of other States; instead they increase their influence by encouraging factions sharing their own ideology to seize or retain power in other States." M. B. Akehurst, *Civil War*, 3 ENCYCLOPEDIA, *supra* note 31, at 88.

Security Council as essentially domestic pursuant to UN Charter, Article 2, paragraph 7.

As a general rule, Inmarsat use by government or rebel forces in civil war is incompatible with Convention, Article 3(3). As has been summarily concluded above, use of Inmarsat must be carried out in accordance with the UN Charter in the common interest of maintaining international peace and security. This relevant purpose for the interpretation of Convention, Article 3(3), has been confirmed to persist within the limitations given in UN Charter, Article 51. The fact that UN Charter, Article 2, paragraph 7, establishes a principle of non-intervention by the UN Security Council in matters that it perceives as essentially domestic, does not *per se* justify use of Inmarsat by armed forces in circumstances of civil war, simply because such use may, other than self-defense under UN Charter, Article 51, not be construed as serving the restoration of international peace and security. If, however, the civil war assumes an international dimension, prompting the UN Security Council to invoke the UN collective security system under Chapter VII of the UN Charter, legitimate Inmarsat use would be by UN forces as summarized above.

Another issue in this context is the invocation of self-defense pursuant to UN Charter, Article 51, in non-international armed conflicts. There are the cases where the rebel forces have previously received help from a foreign State so that the revolt within the territory of a State against the government of that State represents - at least in part - an indirect armed attack by another State (so called "subversion").[43] In such cases of subversion and pending action by the UN Security Council, the "attacked" and defending government forces must be entitled to invoke legitimate self-defense under UN Charter, Article 51, and may, consistent with the considerations set forth above, therefore also use Inmarsat. Under the same conditions, foreign States are entitled to help a government fighting a civil war as a measure of collective self-defense consistent with UN Charter, Article 51. While State practice has demonstrated that it is easier to allege subversion than to prove it, the possible political manipulation of individual or collective self-defense against subversion is without prejudice to the purely legal solution that is here to be concluded.[44]

Thus, the following second conclusion may be drawn: Use of Inmarsat by armed forces - other than UN armed forces acting under the auspices of the UN Security Council - involved in international or non-international armed conflict (civil war) is, in principle, not permitted under Convention, Article 3(3), without prejudice to the exceptional case of legitimate individual or collective self-defense against armed attack and within the limitations established by UN Charter, Article 51. The latter exclude preventive action and self-help involving armed force in the

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43 *Id.* at 91-92.

44 For cases of subversion in recent State practice, *see id.*

absence of armed attack but include self-defense of government against rebel forces involving subversion of a foreign State.

In the absence of ambiguity left after interpretation of Convention, Article 3(3), in accordance with Vienna Treaty Convention, Article 31, with respect to the cases here in question (use of Inmarsat by UN forces and other armed forces), the *traveaux préparatoires* may be consulted for purposes of confirmation: Vienna Treaty Convention, Article 32.[45] From a consultation of the *traveaux* it appears that the present text of Convention, Article 3(3), originates from a US proposal which was retained throughout the negotiation of the Convention, while an earlier USSR proposal adding to the "exclusively for peaceful purposes" requirement the language "It should not permit the military use either directly or indirectly of the technical means which will be at its disposal," was not included in the first draft of the Convention submitted by the IMCO Panel of Experts.[46] There are no other traces indicative of the meaning of Convention, Article 3(3), which would be of relevance here.

(iii) Inmarsat Use in Armed Conflict for D&S and Other Humanitarian Purposes

Distress & safety (D&S) communications via Inmarsat by sea, air and land forces have been permitted from the beginning of Inmarsat operations, irrespective of such forces becoming involved in armed conflict. Such communications are not directly related to the purposes of maintaining or restoring peace and therefore do not fall within the immediate purview of Convention, Article 3(3), although distress communications are more likely to occur with mobiles being involved in armed conflict than during peace times. The main legal basis for Inmarsat providing D&S communications indiscriminately is to be found, *inter alia*, in Convention, Articles 3(1) and 7(1), which determine the improvement of distress and safety of life communications to ships, aircraft and mobile earth stations on land, of all nations as one of the main purposes of Inmarsat. These provisions are complemented by Convention, Article 27, requiring Inmarsat to observe relevant provisions of the International Telecommunication Convention (now Constitution)[47] which provides for "absolute priority" to be given "to all telecommunications concerning safety of life at sea, on land, in the air or in outer space," ITU Constitution, Article 40. Consequently, D&S communications have explicitly been

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45 *See supra* text at 3 *et seq.*

46 A well documented overview of the negotiations leading to the present text of Convention, Article 3(3), is given by R. A. Morgan, *supra* note 3, at 47-51. "The "peaceful purposes" language persisted unscathed throughout the entire negotiation as did the reference to the Outer Space Treaty, and UN General Assembly Resolution 1721(XVI)," *id.* at 49.

47 *See* Final Acts of the Additional Plenipotentiary Conference, Geneva, 1992.

allowed under Inmarsat's past policy and practice relative to Convention, Article 3(3).[48]

Some legal clarification is needed as to the other exemption for "purposes recognised by international humanitarian law" which Inmarsat also accepted in its past policy and practice as legitimate use in armed conflict.[49] The term "humanitarian law" in the context of armed conflict relates to the body of international customary and treaty law dealing with such matters as the use of weapons and other means of warfare in combat and the treatment of war victims by the enemy, *i.e.*, "the direct impact of war on the life, personal integrity and liberty of human beings."[50] The core provisions of this international law are today contained in the four Conventions done at Geneva on 12 August 1949 (the "Geneva Red Cross Conventions")[51] and their supplementation in form of the two Protocols Additional to the Geneva Conventions done at Geneva on 10 June 1977 and relating to the Protection of Victims of International Armed Conflicts ("Protocol I") and Non-International Armed Conflicts ("Protocol II") respectively; to this body of law are also counted earlier Geneva Conventions of 1864, 1906 and 1929 and part of the Hague Conventions of 1899 and 1907 to the extent that they are not superseded by the *lex posterior* of Geneva.[52]

The Hague and Geneva Conventions are regarded widely as customary international law "applicable even if a State has failed to ratify them or if it has denounced them."[53] They are applicable in international armed conflicts and, in regard of their fundamental principles, in conflicts not of an international character;[54] in Protocol II, "non-international armed conflicts" are defined as taking place between the armed forces of a

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48 *See supra* text at 2.

49 *Id.*

50 *See* K. J. Partsch, *Humanitarian Law and Armed Conflict, in* 3 ENCYCLOPEDIA, *supra* note 31, at 216.

51 *See* Geneva Convention for the Amelioration of the Condition of the Wounded and Sick in Armed Forces in the Field (First Geneva Convention (Wounded and Sick)); Geneva Convention for the Amelioration of the Condition of Wounded, Sick and Shipwrecked Members of Armed Forces at Sea (Second Geneva Convention (Maritime)); Geneva Convention Relative to the Treatment of Prisoners of War (Third Geneva Convention (Prisoners of War)); Geneva Convention Relative to the Protection of Civilian Persons in Time of War (Fourth Geneva Convention (Civilians)). The Geneva Red Cross Conventions and the Protocols additional to them each contain a provision whereby the respective instrument enters into force six months after the deposit of two instruments of ratification.

52 *See* C. J. Partsch, *supra* note 50, at 217-218.

53 *Id., Armed Conflict, Fundamental Rules*, 1 ENCYCLOPEDIA, *supra* note 31, at 29. The concept of "Total War" as practised widely during the Second World War and in many subsequent armed conflicts both, international and non-international, is clearly totally incompatible with international law.

54 *See* First, Second, Third and Fourth Geneva Conventions, art. 2.

State and dissident armed forces which, under responsible command, exercise such control over a part of the territory of the State concerned as to enable them to carry out sustained and concerted military operations and to implement the Protocol.[55] This scope of applicability is relevant here for example with regard to the ongoing armed conflict among the Republics of the former State of Yugoslavia, an Inmarsat member, prior to their international recognition as independent States.

The provisions of the Geneva law relevant here are those that relate to communications in connection with (i) the protection of wounded, sick and shipwrecked persons; (ii) the treatment of prisoners of war; and (iii) the protection of civilian persons. They provide for "disinterested aid to all victims of war without discrimination - to all those who, whether through wounds, capture or shipwreck, are no longer enemies but merely suffering and defenceless human beings."[56] Considering the linkage of the Convention to international law and the lack of any conflict of "humanitarian" with "peaceful" purposes to the extent that they relate to the protection of the wounded, sick, shipwrecked, prisoners of war and civilians, communications via Inmarsat by belligerent forces engaged in armed conflict in order to abide by the Geneva Conventions are consistent with the Convention.

Communications of such kind may relate to, *e.g.*, medical personnel of the belligerent armed forces who are engaged in the search for or the collection, transport or treatment of the wounded, sick or shipwrecked, including communications to and from medical land transport, medical aircraft and hospital ships of the armed forces; communications between armed forces and civilian hospitals and the civilian personnel engaged in the search for, removal and transporting of and caring for the wounded and sick civilians, convoys of medical vehicles, hospital trains; communications relating to prisoners of war, including members of militias and other volunteer corps that enjoy combatant status, members of crews of the merchant navy and persons who accompany the armed forces without being members thereof.

A selective consideration of this body of law in view of Convention, Article 3(3), is necessary because as stated above, "humanitarian law" as understood today comprises the Hague and Geneva law and thus extends to methods and means of warfare.[57] Use of Inmarsat in armed conflict that complies with the Hague and Geneva law regarding methods and means of warfare is certainly not *per se* sufficient to create consistency with the

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55 *See* Protocol II, art 1.

56 *See* The Geneva Conventions of August 12, 1949 edited by the International Committee of the Red Cross (ICRC), Prelim. Remarks, at 1.

57 *See* The Compilation of INTERNATIONAL LAW CONCERNING THE CONDUCT OF HOSTILITIES (ICRC ed., 1989); Additional Protocol I, pt. III, sec. I, Methods and Means of Warfare, *id.*., at arts. 35-42,

Convention, Article 3(3), requirement if such warfare is carried out by non-UN forces and outside the limitations of UN Charter, Article 51.

Finally, there are, of course, the countless other peaceful purposes for which use of the Inmarsat system may be made by armed forces and that, although such forces may be engaged in armed conflict, are not related to or in support of the war effort. Thus, *e.g.*, totally personal and private communications by members of the armed forces with their families are clearly not inconsistent with Convention, Article 3(3). On the other hand, non-tactical governmental communications, such as news broadcasts and troop entertainment à la Marlene Dietrich or likewise, need to be deemed inconsistent with Convention, Article 3(3), to the extent that they occur outside armed conflict activities sanctioned by the UN Security Council, because the purpose of such communications is clearly to maintain, support and stimulate the war effort and they can, therefore, not legally be treated different from the use of Inmarsat for tactical communications, *i.e.*, for purposes of war.

Thus, the following third conclusion may be drawn: Use of Inmarsat by armed forces engaged in armed conflict is permitted for D&S communications, and for communications relating to the protection of the wounded, sick, shipwrecked, prisoners of war and civilians, pursuant to the Geneva Red Cross Conventions, 1949, and the Protocols Additional to the Geneva Conventions, 1977. The same applies to personal and private, non-tactical communications by members of the armed forces that are not related to or in support of the war effort. Inmarsat use for non-tactical governmental communications that directly or indirectly maintain, support or stimulate the war effort and that do not originate from governments of, and are directed to, armed forces engaged in activities sanctioned by the UN Security Council, or legitimate self-defense pursuant to UN Charter, Article 51, is not consistent with Convention, Article 3(3).

Conclusion

The foregoing analysis set out to establish the proper legal regime and parameters for use of the Inmarsat system by armed forces in view of the peaceful purposes requirement in the Inmarsat Convention, Article 3(3). The main conclusions drawn are summarized here as follows:

(i) use of Inmarsat by armed forces (military use) not involved in armed conflict or any threat to or breach of the peace is permitted;

(ii) use of Inmarsat by UN peacekeeping or peacemaking forces acting under the auspices of the UN Security Council is permitted, even if engaged in armed conflict to accomplish their mission;

(iii) use of Inmarsat by armed forces not acting under the auspices of the UN Security Council involved in international or

non-international armed conflict (civil war) is not permitted, except in the case of legitimate individual or collective self-defense within the limitations established by UN Charter, Article 51; the latter exclude preventive action and self-help involving armed force in the absence of armed attack but include self-defense of government against rebel forces involving subversion of a foreign State;

(iv) use of Inmarsat by armed forces engaged in armed conflict is permitted for D&S communications, and for communications relating to the protection of the wounded, sick, shipwrecked, prisoners of war and civilians; also permitted are personal and private, non-tactical communications by members of the armed forces; however, use of Inmarsat for non-tactical governmental communications related to or in support of the war effort that do not originate from governments of, and are directed to, armed forces engaged in activities sanctioned by the UN Security Council, or self-defense pursuant to UN Charter, Article 51, is not permitted.

For practical purposes, these conclusions only provide a general and incomplete framework. The analysis did not attempt to exhaustively enumerate and evaluate all possible Inmarsat applications by armed forces. Further, the focus in the analysis on military use of the Inmarsat system must not de-focus from the fact that, as pointed out above, Inmarsat has been conceived and developed, under the continuing institutional control of its Member States, as a civil space communications organization with the main purpose of making its system available for the benefit of civil maritime, air and land transport; military applications will have to continue to be exceptional and will need to be assessed on a case by case basis in the light of the peaceful purposes requirement of the Inmarsat Convention, as here interpreted.

Finally, the analysis provided an example of legal methodology applicable to treaty interpretation. The institutional requirement for Inmarsat to act exclusively for peaceful purposes may, at first glance, appear irreconcilable with the use of its system by, *e.g.*, armed forces engaged in armed conflict. That such use may be construed as fully consistent with the peaceful purposes requirement is the result of proper legal methodology. It demonstrates the dimension of interdependence of the Inmarsat Convention, like any other treaty, from the body of international law that surrounds it and becomes activated as a consequence of legal rather than only philological methodology which latter has often dominated approaches to the problematic meaning of "peaceful purposes" in space law.